

ORIGINAL

(S E R V E D)
(JUNE 17, 1994)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

June 17, 1994

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.

v.

SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.

BRIEFING SCHEDULE

Complainants and respondents have submitted separate proposed post-hearing briefing schedules.

Opening and Reply Brief Dates

Complainants propose that initial simultaneous findings and briefs be served August 15, 1995 (60 days after June 15), although they would consider September 13 (90 days after June 15). Complainants note that in the schedules originally agreed upon on

September 16, 1991, the parties favored 1-1/2 months for initial briefs and the same time for reply briefs. Complainants have offered to extend the time for opening briefs to two months which they believe should offer more than adequate time to prepare the briefs, or to three months, but they strongly prefer the two months' time frame.

Respondents seek six months for opening briefs and 2-1/2 months for reply briefs. However, they would be willing to try to live with five months for initial briefs subject to a possible motion for extension if needed.

Respondents urge that the four months difference between the parties is insubstantial in the context of a case that already has consumed four-and-a-half years, but that it would make a big difference in the way the issues are presented and the degree to which the briefs are able to provide assistance in navigating through the record, in relating the facts in that record to the issues involved, and in preparing the initial decision.

The central overriding facts on which respondents rely are the size, degree of detail, and complexity of the record totalling over 21,000 pages. "It is daunting to attempt simply to work one's way through the record, much less to organize and discuss it in a meaningful, responsible fashion . . . a rate case of unprecedented size and scope."

Respondents also point out that longer intervals for briefing, than sought by complainants, are required by comparison to the intervals averaging 9 months, which the parties have been afforded to prepare their cases and/or to respond to each other's presentations.

Conclusion

Opening Briefs shall contain the following in separately-captioned sections:

- (1) an Introductory section describing the nature and background of the case. Statements of fact made throughout the brief should be accompanied by appropriate record reference;
- (2) proposed findings of fact in serially-numbered paragraphs with reference to exhibit numbers, pages of the transcript, and name of witness;
- (3) argument based upon principles of law with appropriate citations of the authorities relied upon;
- (4) conclusions of law; and
- (5) a subject index or table of contents and a list of authorities cited with page references. Also see 46 CFR § 502.221.

All briefs shall be double-spaced and printed on one side of a sheet only. Upon consideration of all the arguments of the parties, it is concluded that simultaneous briefs shall be due on or before November 7, 1994.

Reply Briefs

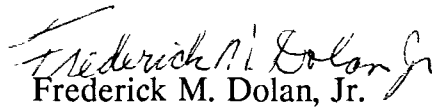
Complainants seek 45 days for filing simultaneous reply briefs while respondents propose a 75-day period. A period of 60 days should be adequate, and simultaneous reply briefs shall be due on or before January 9, 1995.

Surreplies

Respondents also propose that a 15-day period be provided for surreplies so that the parties would have a ready vehicle for dealing with problems that they will likely perceive in the other side's presentation of the record on reply. Complainants oppose any further replies beyond reply briefs provided in earlier schedules.

Conclusion

The asserted need for surreplies is the same as for replies--to respond to perceived problems in the other side's presentation. But in this unusual proceeding it will be more expeditious to provide now for a short period for any necessary surreplies. Simultaneous surreply briefs will be due on or before January 24, 1995.


Frederick M. Dolan, Jr.
Administrative Law Judge